

Enterprise Subscription Agreement

ENTERPRISE SUBSCRIPTION AGREEMENT

Agreement Number: CTR-2024-001

Date: 15 June 2024

BETWEEN:

DataFlow Solutions Ltd (Provider), registered at 42 Silicon Dock, Dublin 2, Ireland

AND:

Colm Moynihan, on behalf of Snowflake EMEA (Customer), registered at One Burlington Plaza, Dublin 4, Ireland

1. SERVICES

The Provider agrees to supply the Customer with access to the Enterprise tier of the DataFlow Analytics Platform, including:

- Unlimited user seats
- Advanced analytics dashboard and reporting modules
- Real-time data streaming capabilities
- Priority support (4-hour response SLA)
- Dedicated account manager
- Custom API integrations

2. TERM

This Agreement commences on 15 June 2024 and continues for a period of twelve (12) months, expiring on 14 June 2025, unless renewed or terminated in accordance with this Agreement.

3. FEES AND PAYMENT

The Customer shall pay the Provider a total fee of EUR 12,800.00 (Twelve Thousand Eight Hundred Euro) for the Term, payable quarterly in advance:

- Q1: EUR 3,200.00 due 15 June 2024
- Q2: EUR 3,200.00 due 15 September 2024
- Q3: EUR 3,200.00 due 15 December 2024
- Q4: EUR 3,200.00 due 15 March 2025

Late payments shall incur interest at 2% per month.

4. SERVICE LEVEL AGREEMENT (SLA)

The Provider guarantees:

- 99.9% platform uptime (measured monthly)
- Critical issue response: 4 hours
- Major issue response: 8 hours
- Minor issue response: 24 hours
- Scheduled maintenance windows: Sundays 02:00-06:00 GMT

In the event of SLA breach, the Customer is entitled to service credits:

- Uptime below 99.9% but above 99.5%: 10% monthly credit
- Uptime below 99.5% but above 99.0%: 25% monthly credit
- Uptime below 99.0%: 50% monthly credit

5. DATA PROTECTION

The Provider shall process Customer data in accordance with GDPR and the Data Processing Agreement annexed hereto. All data shall be stored within EU data centres. The Provider shall implement appropriate technical and organisational measures to protect personal data.

6. TERMINATION

Either party may terminate this Agreement:

- With 90 days written notice before renewal date
- Immediately upon material breach not remedied within 30 days of written notice
- Immediately if the other party becomes insolvent

Upon termination, the Provider shall return or destroy all Customer data within 30 days.

7. LIMITATION OF LIABILITY

The Provider total liability under this Agreement shall not exceed the total fees paid by the Customer in the 12 months preceding the claim. Neither party shall be liable for indirect, consequential, or incidental damages.

8. GOVERNING LAW

This Agreement shall be governed by the laws of Ireland.

SIGNED:

Colm Moynihan (Customer) - Date: 15 June 2024

Michael O Sullivan (Provider - CEO) - Date: 15 June 2024